

Council Meeting
March 13, 2019
Page 1

The Claremont City Council held a meeting on Wednesday, March 13, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

AGENDA CHANGES

Mayor Lovett had a request by the City Manager to move item 10D “Discussion of Process for Appointing Boards and Committee Members” to the next meeting on March 27. All were in favor.

REPORT OF THE SECRETARY

Mayor Lovett noted that the Clerk to the Council, Dorée Russell, is absent due to an injury. The council has a choice if they would prefer to talk about the changes, if any, to the minutes and approve them tonight, or if you feel there are several changes to be made and would rather have Ms. Russell back, we can reschedule approval of these minutes to a future meeting.

A motion was made by Councilor Koloski to accept the minutes of the February 13, 2019, City Council meeting.

Councilor Stone stated he would like to delay the approval of minutes until Ms. Russell is back. Mayor went down line, majority agreed to wait until next meeting.

MAYOR'S NOTES

1. Thanks to all who came out to vote yesterday and to those residents who staffed the polls throughout the day. School elections greatly impact our community and your participation is important.
2. Congratulations to Evelyn Cormier, a Claremont native, who has been recently featured in local media and on the NH Chronicle for being a contestant on American Idol.
3. At the request of the City Council, Executive Director of NHMA, Margaret Byrnes, will be in Claremont on March 18 at 6:30 to present training titled "Workshop for City and Town Councilors, Mayors and Aldermen."
4. River Valley Community College is celebrating its 50th anniversary on March 29 at the Common Man restaurant. This is a wonderful opportunity to learn about the impact that this institution has made in the community and region over the last 50 years, and to honor Harvey Hill for his contributions to the college. To purchase tickets for this event, please go to the RVCC website and click on
5. Last Thursday, Director of DPW, Vic St. Pierre, and I traveled to Westborough MA to give a presentation at the NE Lead Summit. One of the highlights at the event was the work being done in Claremont to address childhood lead poisoning, and the progress we have made in removing lead from the water distribution system. The presentation we gave has been distributed to attendees throughout the NE states. The article that I wrote on the topic was also posted on EPA Region One's Facebook page.
6. Finally, this Sunday the Mayor and First Lady of NYC will be coming to Claremont for a roundtable discussion on substance use disorders. This is in support of their Cities Thrive Initiative which encourages leaders across the nation to come together to address the opioid epidemic and to learn from each other. The discussion will take place at the Sugar River Valley Regional Technical Center at 10am on Sunday, March 17. After the discussion, they will then go to Taverne on the Square to dine. The public is welcome.

Assistant Mayor Damren stated several meetings ago DPW Director Vic St. Pierre made reference that employee George Miller had recently become a Master Road Scholar, there was no sentiment from the council at that time and I would like to extend that now.

Looking at the Road Scholar website we have several DPW employees that are at varying stages of certification and that is to be commended.

CITY MANAGER'S REPORT

- Mr. MacLean said that Dorée could possibly be out a couple months and would like to extend a get well soon.

- We have had four DPW employees go through the certification to become flaggers: Scott Baker, Ricky Blake, Alan Benware and Caleb Silver.
- The city manager's office received a request to put up a banner and the city does not have a banner policy that I am aware of. In the past, it has been reserved for banners for the City that we have paid for and put up. As you all know River Valley is celebrating their 50th Anniversary and would like to use our banner and pole space for a short time to announce this, if there is no objection I would proceed on behalf of the city to allow them the use. I will start working on a policy to bring back to the policy committee for the full city councils review as I feel you will want one going forward.
- We received bids for the new airport terminal building; they came in at our estimate of \$730,000 although with the additional engineering etc., the total cost would be \$795,000. We do not have that extra amount available to us at this time. Typically, it would be a 90% grant from the FAA, a 5% match from the State Aeronautics and another 5% local match. We have the local match but how do we make up the difference because we have \$600,000 in non-priority airport improvement funds. We have found that we can take advantage of other airports that are not utilizing their funds for this purpose. We have a request out to Dean Memorial Airport in Haverhill; NH and we hope we will get a favorable response. We would pay a small fee to them for the use of their allocation, it would be approximately 5% of the amount we would ask them for. It would add a small amount to the project cost but we would end up receiving almost \$116,000 in funding towards this project which would make it whole. It is a great project and we may be back to the council for any types of permission we may need for the funding.
- We are having an open house to reimagine the JSL and have scheduled that for March 20th. We are hoping councilors can attend to say hello to the general public. This is open to the public, there will be a tour and comments cards and all are welcome. I will have a report back to the council on the 27th.
- The Sugar River Bank erosion projects are going good, we will be reporting back at a later date. One is completed and the other we are working on the actual permit (we had a temporary permit to do the work). Thank you for authorizing us to go forward. Very important project to our utility system.

APPOINTMENT TO BOARDS AND COMMITTEES

Historic District Commission

A motion was made by Mr. Damren and seconded by Mr. Pope to re-appoint David Messier to seat 4 of the Historic District Commission.

Voice vote: motion carried 9-0

A motion was made by Mr. Pope and seconded by Ms. Kier to re-appoint Richard Wahrlich to seat 5 of the Historic District Commission.

Voice vote: motion carried 9-0

Zoning Board of Adjustment

A motion was made by Mr. Koloski and seconded by Mr. Damren to re-appoint Michael Hurd to seat 2 of the Zoning Board of Adjustment.

Voice vote: motion carried 9-0

A motion was made by Mr. Koloski and seconded by Mr. Stone to re-appoint James Petrin to seat 3 of the Zoning Board of Adjustment.

Voice vote: motion carried 9-0

Mayor Lovett noted they received another applicant for the ZBA and the city manager will be meeting with that person next Monday.

CITIZEN'S FORUM

Walt Stapleton, Ward 3, NH House Rep Sullivan District 5, today he attended the work session in Finance Committee relative to the education bills there were 4 bills passed recently in the House.

177 – Temporary Restoration of stabilization disparity aid

551 – Create a 15-member funding commission

709 – Adequate education funding formula

686 – Adequate funding formula with variations

They have been retained for further work and consolidation. It looks like 709 has gained more interest.

John Maynard, Ward 1, I read the 58 pages of the city budget and could not quickly see where money is coming from and going. When it comes to voting on budgetary items it is hard for me to decide whether to vote on spending a large amount of money if I cannot see where it is coming from. When I was in the military everywhere you went you had a slogan, something that defines you. In business it's business mission statements, when I looked at Claremont's website I cannot find anything that says who we are and what we are trying to achieve. I would encourage the City to adopt one. There has been a lot of controversy just since December and mistakes have been made. I try to find the good in people and I don't judge all of you and do not hold you to a higher standard than I hold myself.

Michael Sanborn, Ward 1, I wrote a book "A cop in a small city", that he would like to present to the city. This book came about by my granddaughter wanting to hear a story. I didn't want to

have just a collection of stories, so I wrote this book that comes from my years as a police officer here in the city back in the 80's. I welcome any feedback.

Mr. Damren stated in looking over the department reports he noticed the community center for the 5th or 6th month in row membership has been on the rise and wanted to acknowledge this. Also stated that Claremont needs to determine its brand, referring to Mr. Maynard's comments.

OLD BUSINESS

Ordinance 565 – Establish Board of Assessors – Second Reading – Public Hearing

Mr. Damren read the ordinance into the record and seconded by Ms. Kier.

Stephen Hamilton, Interim Assessor, I think this will be a dramatic improvement in the way the abatement process will be handled within the city and will provide for greater transparency and accountability within government and I am a big fan of both. This way the decision of granting abatements will be contemplated by more than just one person.

Mr. Koloski read #6 on the ordinance "Furnish information concerning any of the work, conduct, affairs and activities of the office to the city council on request. Would like to see something in the council rules about how we obtain information. We have done good to not have council interface but we do not have anything that says how we get department information. We would not want a councilor to be able to request information from the Board of Assessors on a particular property. Just thinking 10 years from now and trying to make it clear.

Mr. Stone stated when they drafted this, the city council would be acting as governing body entity as a whole not a specific councilor.

Mr. Pope state that we have training coming would this be a good question.

Stephen Hamilton, Interim Assessor stated that the last sentence of Section 2 states "The Board shall establish rules and procedures governing its operation" so there should be a handoff from the city council to the board of assessors.

Mayor Lovett gave quick background of how we got here.

Mayor Lovett opened the Public Hearing.

Walt Stapleton, Ward 3 stated he is very happy to see the work you have done here; this brings it into the public view to see and I am happy as a citizen to see this done.

Mayor Lovett closed Public Hearing.

Mayor Lovett asked all of those in favor of adopting this ordinance.

Voice vote: motion carried 9-0

Accept Community Development Block Grant for Claremont Learning Partnership Feasibility Study.

Director Nancy Merrill said last October the council authorized the application for a Community Development Block Grant for the Claremont Learning Partnership, the grant has been approved by Governor & council and comes back to you to accept it and authorize the Manager to move forward carrying out the purpose of the grant.

A motion was made by Ms. Kier and seconded by Mr. Zullo that the Claremont City Council hereby accepts the Community Development Block Grant award in the amount of \$12,000, on behalf of the Claremont Learning Partnership to support its teen transitional housing facility study at the property situated at 169 Main Street and to further authorize the City Manager or his designees to sign and execute all documents and undertake all actions as may be required to implement the grant.

Voice vote: motion carried 9-0

City Manager Search Update

Assistant Mayor Damren wrote memo – over the weekend and he believes there are holes too big to do this project in house. The two people that were going to be instrumental, 1 has broken her ankle and will be out for a while and in HR we have a department of one. I believe this is too much to do inhouse.

There were four responses to our RFQ: David Gomez & Associates, Indiana; GovHR, Illinois; The LMC Group, NH; and ROI Search Group, Illinois.

Kier stated she did not receive any of the information and feels she is unable to make a decision.

Manager – coming via MRI – the time of confusion is a good reason why you need help. You will need to keep some confidential, vetting.

Stone asked if any other councilor did not get their packet. Several stated they did not.

Zullo was excited to see this that we have brought it back to us. Agrees with Stone that a subcommittee should be formed.

Kier – is it able to table this and have a special meeting to figure this out.
Pope would like to look at the proposals.

Koloski – I believe the committee last time had too many members but do not like the 3 councilor and 4 citizens – talk about the “good ole boy network”

Most government agencies have an internal posting first.

Lessard –agreed with Zullo – we cannot spend this kind of money – I believe we can do this with a committee.

Lovett – this is a top priority we have to get moving on this.

Manger – is it possible to come in early on the 27th to work on this issue? I believe with all of the right information in front of you I believe you will be able to move quickly.

Special Meeting on March 21st at 6:30pm for discussion on City Manager Search Update. Gary Dickerman advised the board he is not available to tape that night. Council will have to speak to Keith of CCTV about having someone tape the meeting.

NEW BUSINESS

Auditor Report

Robert Vachon & Tammy Webb from Vachon, Clukay & Co. PC were present to speak on the City of Claremont audited financial statements of and for the year ended June 30, 2018.

Governance Communication:

Required communication to the City Council and management summarizing the overall audit process for the year. Key items are as follows:

- No new standards or policies with financial statement impact were adopted or implemented other than GASB 75
- No significant audit adjustments were required
- No uncorrected misstatements noted as part of the audit.
- We noted no transactions entered into by the City during the year for which there is a lack of authoritative guidance
- We encountered no difficulties in dealing with management.

Report on Internal Controls:

As part of our audit of the basic financial statements we examined the City's internal control structure over financial reporting. Our testing included, but not limited to:

- Control testing over cash receipts, cash disbursements and payroll on a rotating basis
- Review of adjusting journal entries recorded by the Finance Department
- Examination of all credit card purchases which we consider to be "high risk"
- IT Controls evaluated on an annual basis (accounting system has properly limited access. Back-ups are performed routinely. Passwords are required for network, software, and banking service, and are changed frequently. Hardware and software security measure are implemented)
- There were no deficiencies or weaknesses identified in our current audit to be reported.
- No deviations or exceptions were noted as a result of testing procedures.

- No other matters which require other communications.

Independent Auditor's Report:

- WE ARE PLEASED TO REPORT THAT THE City's efforts resulted in an unmodified or "clean" opinion again this year.
- A risk based audit approach and unpredictable testing continues to be the core of our audit planning and performance. Consequently, our focus continues to be areas of high risk for financial statement material misstatement and fraud.

General Fund Budget and Actual Comparison:

- Actual revenues were more than budgeted amounts by \$19,000.
- Total expenditures and other financing uses were **\$602,000** less than the approved general fund budget.
- The end result is that the city's ending fund balance is \$621,000 higher than originally budgeted.

GASB #75 – A new pronouncement:

The implementation of this new standard added several pages to the City's financial statement disclosures.

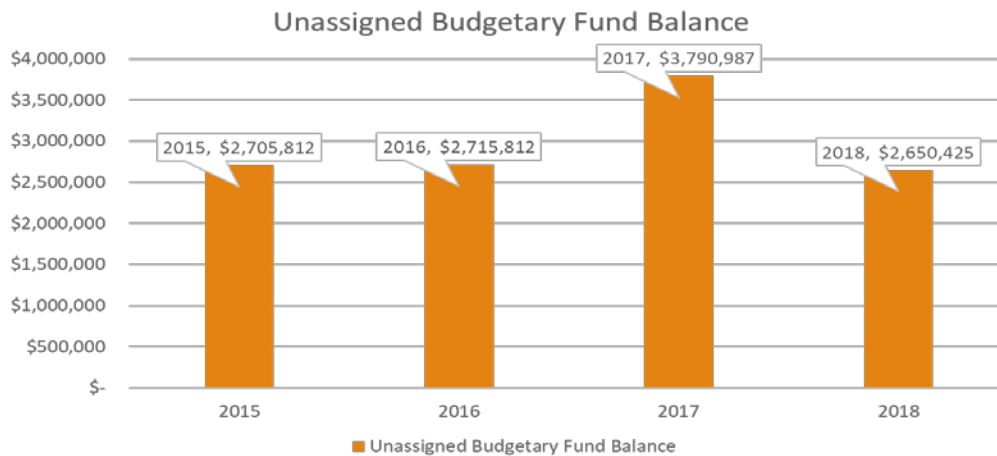
Cost-sharing plan:

- The city's estimated proportional share of the **NH Retirement System's unfunded OPEB liability** of \$880,000 is now reported in the government-wide financial statements.
- The reporting of this liability is similar to the city reporting its share of the net pension liability.
- The city's OPEB liability for its single-employer plan is \$2.3 million at June 30, 2018, an increase of \$1.5 million over the prior reporting.
- The OPEB liability is estimated using several actuarial assumptions such as: inflation, salary increases, discount rate, and healthcare cost trend rates.

Federal grants:

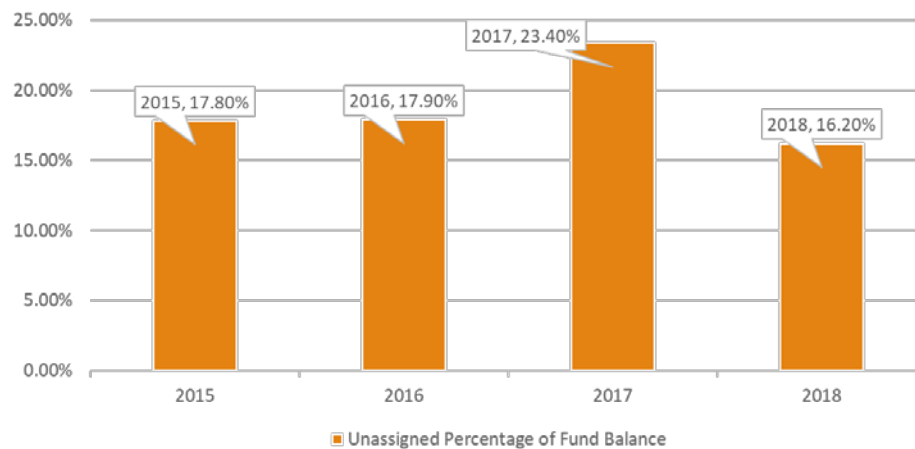
- During the year ended 6/30/18, The City expended approximately \$384,000 in federal awards.
- No separate federal compliance audit was required for 2018.

Budgetary Fund Balance Trends



Unassigned Fund Balance as a Percentage of General Fund Expenditures

Unassigned Percentage of Fund Balance



Thank You:

- On behalf of myself and the members of our firm, we thank you for allowing us to serve as your independent auditors.
- We also want to express our appreciation to the management team and the finance office for their assistance during the audit.

We issue a letter to the governing body. Mr. Vachon wanted to let the council know that you can rely on the information provided to you by your finance department. The audit resulted in an unmodified or clean opinion again this year.

Mr. Vachon stated the city finances are excellent, they really are – lots of cities have difficulty achieving what you have achieved in the last 4 years. At the beginning of the audit the city Moody bond rating had been increased.

Mary Walter wanted to give a thank you to her staff, as she was out for 11 weeks during the summer.

Mr. MacLean said he has seen a lot of audit reports and this is one of the best I have seen. The community can be proud. I want the council to take some credit because this is a collaborative effort between council and staff.

Encroachment of Rail Trail Discussion

Mr. MacLean and Mr. Brislin had a chance to go look at the rail trail where the encroachment is and met with two business owners.

Mike Hurd stated his father has had a long-standing agreement with the railroad that allowed for the encroachment of the building onto the property. This complicates the relationship now that the railroad is gone and the rail trail is in the city's jurisdiction. Mr. Scott Reed is doing a good job, he is encroaching onto the property but not on the travel portion. A long-term solution would be to see about going around the property, by looking for grants and other funding sources. Short term interest might be to better define the travel portion of the trail and work cooperatively with the property owners. I will be working with Mr. Brislin on some options and we will bring them directly to the Parks and Recreation Commission and based on their recommendations it will come back to the city council.

Mr. Brislin stated the city manager did great at outlining where we are at now.

Mayor Lovett said the take away is they are working on both short & long-term solutions. She asked if there has been any accidents or injuries as a result of the encroachment.

Mr. Brislin said not that he is aware of.

James Neil stated his family owns the property between Hurd property & VIP. His concern is that there has been traffic on the portion of the rail trail that fronts his property and Mr. Hurd has been using that it as part of his parking plan. I have spoken to the NH Department of Parks and they informed that the property is under the jurisdiction of the DOT turned over to the City of Claremont and that there are restrictions of no vehicular operation. He has strong objection to this and feel there has been a great deal of violation and disrespect to his property and would like it addressed.

Mr. Brislin added that this is not a new issue it dates back many years. The problem is when you walk out of Mr. Hurd's building you are stepping right onto the city's property with the right of way, it is a delicate matter.

Mr. MacLean stated his intent is to come back to the council within in 60 days. Looking at first meeting of May.

Food Truck Policy Recommendation

Mayor Lovett gave background of Policy Committee meeting back on September 20, 2018, there was no quorum so it was a discussion between Councilor Stone, Mayor Lovett and former City Manager Ryan McNutt and a couple who are food vendors that vend in Newport but are Claremont residents. Director Nancy Merrill had given a template and we gathered responses. The policy committee meet with Director Merrill and Director Brislin and coordinator of the Farmer's Market to get input. The policy committee in the end agreed that they liked the policy that the City of Lebanon had but with a few modifications.

Mayor Lovett said the idea tonight is to get council permission to move forward and send all of this information with reference to the Lebanon policy to legal counsel so they can start drafting an ordinance so it can come to council for a first reading. When that ordinance is drafted we will circulate it again, with the City Managers permission, to the city administration for their input before it comes back to council for first reading. It was also agreed this ordinance would be attached to Chapter 8 Article 5 of the MuniCode which pertains to "Hawkers and Peddlers and Itinerant Vendors".

Mr. Koloski asked if this addresses food vendors that are roaming and that are stationary on private property? Will this also address and identify spots within the city that can be permanently used and by whatever means raffled off or lottery system?

Mayor Lovett said all of that has been addressed in this ordinance.

As there was no objections Mayor Lovett will forward all information to legal counsel, City Council and the City Manager.

Review of 2018 City Council Goals & Establish 2019 Goals

Mayor Lovett put this in the packet because normally every year we review last years goals and establish new year goals, it has been a busy beginning year. She would like to get council ideas and input and to keep it achievable I think we should focus on no more than 3 areas.

Ms. Kier said initially she assumed that we didn't get anything done but I was pleasantly surprised that we did get a lot done and feels we have done very good in several areas. The city has worked hard on absentee landlords and safety conditions of housing. She likes the document and we should refer back to it more during the year.

Mr. Damren said he finds the document too broad and it is not focused enough for him. Would urge to have something smaller so we can easily get our arms around it.

Mr. Koloski finds this too large and 50% useless without input of departments heads that have made some of this happen. Some things on this list have been addressed almost fully and can be taken off the list. It might be a good start for everybody here with a homework project to list your top 3 and we start fresh again.

Mr. Pope said we set our goals and they percolate for a year and next year we set our goals but we have never really done an end of year assessment to see if we met them and I think that will be critical. There used to be an annual report which was very useful, it went away a long time ago.

Mayor Lovett said in the past we have spent some time seeing what we accomplished. She asked if the council was good with Mr. Koloski's suggestion of looking this over and coming back with their top 3 priorities. All were in favor of this.

Council Rules Update

Mr. O'Hearne said he would pick up from last meeting and he doesn't feel it is currently working under the council rules and thinks setting the agenda needs to be a joint effort of the City Manager and Mayor. Things don't get on the agenda or are being prioritized as being what it is. For example, last meeting Council Rules Discussion was last on the agenda and Council Rules Update is now last on the agenda tonight. Not sure why it has to be and feel it should have been a little higher up. I'm just getting a feeling that if it is something like this it is last and he will throw it out to the rest of the council.

Ms. Kier think's it's difficult, both rules are good in their own way. The current one assumes there will be agreement but if there is not there has to be someone to make the decision.

Mr. O'Hearne believes two people can mutually agree, the Manager has what he is focusing on as the day to day operations and the Mayor has what she is focusing on as part of the council. What I have been seeing is a problem of things not getting on the agenda. Last year I asked for something to be put on the agenda and it still has not made it on an agenda.

Mayor Lovett gave some background. Stated she keeps a list and the clerk does as well, thru the minutes, and she's not saying things don't fall thru the cracks. Said she can send it out to the council if they would like. Sometimes the agenda has already been advertised so things may have to wait until the next meeting. Agenda must be posted in the paper two weeks in advance. Perimeters I use for the agenda is safety items, if there will be a lot of people to talk on the subject or if we have presenters who may be coming from afar.

Mr. MacLean said it is a collaborative process and well defined in the charter that the City Manager will speak to the council, so the day to day operations can be conducted properly. The City Manager is your one direct employee, and serves at your pleasure. That person has to understand that and I cannot imagine an argument with the Mayor or a member of council about as to what goes onto the agenda. Policy items are the province of the council. Any member that feels they are not getting something on the agenda can bring it for a full council vote.

A short discussion followed.

A motion was made by Mr. O'Hearne and seconded by Mr. Stone regarding Setting the Agenda – When setting the agenda for a Council meeting, the Mayor will coordinate agenda items with the City Manager. Both the Mayor and the City Manager will come to a mutual agreement on determining the content of the agenda. Once the agenda is approved, the Council Clerk will format and post the agenda.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - no

Zullo - yes

Kier - no

Koloski - yes

Pope - yes

Lovett - no

Motion carried 6-3

COMMITTEE REPORTS

Mr. Pope referred to a memo from the Energy Advisory Committee from chairperson Derek Ferland. They have another meeting coming up this Monday. We are making very good progress.

Mayor Lovett stated the city has been asked to weigh in on SB286, it would be nice to get a position from the EAC to know what we are advocating for.

Mr. Damren asked who was on the energy round table and how often they meet.

Mayor Lovett said the current representatives are from Keene, Claremont, Lebanon, Nashua sometimes Hanover and they meet quarterly.

Mr. Pope asked, so he can report back to the EAC, who goes to the roundtable to represent the City. Could an EAC member go, Mayor Lovett said yes, it is a public meeting.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mr. Koloski asked if we received a rail trail status update regarding ATV's? Also, one of the documents we had mentioned a Board of Health, as we do not have and do we need one? What

did we decide for process regarding employee recognition such as retirements? These are just questions do not have to be agenda items.

Mr. MacLean stated they are asking each department head to bring information forward such as retirements, awards and recognitions.

Mr. Stone said he had someone email him about the city getting more information out about voting.

Mr. Damren said that the school advertises their elections and at one time there were banners up on each school along with signs and articles in the paper.

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 9:09 p.m., a motion was made by Mr. Damren and seconded by Mr. O’Hearne to adjourn.

Voice vote: motion carried 9-0

Respectfully Submitted,

Gwendolyn R. Melcher
City Clerk